



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON MARCH 3, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

Hon. Joseph H. Yap, Jr.	S. B. Member/ on leave
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RESOLUTION NO. 044-2025

Introduced by the council

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE SORSOGON STATE UNIVERSITY, REPRESENTED BY DR. GERALDINE F. DE JESUS, SORSU PRESIDENT, FOR THE ON-THE-JOB TRAINING OF BS TOURISM MANAGEMENT STUDENTS IN THE LOCAL GOVERNMENT UNIT OF PRIETO DIAZ, SORSOGON

WHEREAS, SSU endeavors to establish with LGU of Prieto Diaz, Sorsogon an On-The-Job-Training of its students for the practicum exposure in the industry as part of the college curriculum;

WHEREAS, SSU offers, as part of its curriculum, an on-the-job-training designed to augment its students' formal education by having qualified students to undergo training prior to graduation for the purpose of familiarizing them with actual office and industrial operations and management;

WHEREAS, the LGU of Prieto Diaz has agreed to accommodate student-interns from Sorsogon State University, Bachelor of Science in Tourism Management and Hospitality Management to complete the required number of hours of

training/internship/skills development, with a maximum of eight (8) hours only per workday;

WHEREAS, the LGU of Prieto Diaz shall provide a conducive training environment to the student-trainees free from any form of discrimination;

WHEREAS, on motion of Hon. Albert Destura, duly seconded by Hon. Jo Madel Domalaon;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian to enter into a Memorandum of Agreement with the Sorsogon State University represented by its President, Dr. Geraldine De Jesus, for the on-the-job training of BS Tourism Management students in the Local Government Unit of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Municipal Mayor, Hon. Romeo D. Domasian; copy furnished Mr. Christian Lloyd Golena, MHRMO; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

MEMORANDUM OF AGREEMENT

This Memorandum of Agreement made and executed by and between **SORSOGON STATE UNIVERSITY – Sorsogon Campus**, duly organized and existing under Philippine Laws with principal address at Magsaysay St., Sorsogon City, represented herein by **Dr. GERALDINE F. DE JESUS, SorSU President**, hereinafter referred to as the "**UNIVERSITY**".

AND

MUNICIPAL GOVERNMENT OF PRIETO DIAZ a duly organized establishment existing under the laws of the Republic of the Philippines with principal office address at Prieto Diaz, Sorsogon, represented by **HON. ROMEO D. DOMASIAN**, Municipal Mayor herein after referred to as the "**COMPANY**".

WITNESSETH: That

WHEREAS, the **UNIVERSITY** endeavors to establish with, **MUNICIPAL GOVERNMENT OF PRIETO DIAZ** an On-the-Job-Training of its students for the practicum exposure in the industry as part of the college curriculum;

WHEREAS, the **UNIVERSITY**, as a higher educational institution, will adopt a Cooperative Education Scheme where theories learned in the classroom may be applied to practical work experiences and, thereby, enable SorSU students to attain their career goals;

WHEREAS, the **UNIVERSITY**, offers, as part of its curriculum, an on-the-job training designed to augment its students' formal education by having qualified students to undergo training prior to graduation for the purpose of familiarizing them with actual office and industrial operations and management;

WHEREAS, the **MUNICIPAL GOVERNMENT OF PRIETO DIAZ** agrees to assist the **UNIVERSITY** in developing productive and skilled future worker thru the Internship program; and

Now, therefore, in consideration of the foregoing premises and of the mutual covenants hereinafter set forth, the parties herein have agreed to enter into this agreement under the following terms and condition:

A. DUTIES AND RESPONSIBILITIES.

The **UNIVERSITY** and the **COMPANY** hereby undertake and agree to faithfully comply with what is incumbent upon it in accordance with the tenor of this agreement, and specifically exercise the following duties and responsibilities.

University

1. For the student-interns to make an application to the **COMPANY**, fulfill, comply, accomplish, and submit all the course requirements set forth by the **COMPANY** for the Student Internship/Training Program;
2. Select and recommend Bachelor of Science in Tourism Management and Hospitality Management student-interns who will undergo Internship Program at the **COMPANY**;

3. Issue an official endorsement vouching for the well-being of the student-interns as well as other pertinent documents that shall be used by the COMPANY in processing the student-interns' application;
4. Prior to the training with the COMPANY, the UNIVERSITY shall provide their student-interns with basic orientation on work values, behavior, and discipline to ensure their cooperation with the COMPANY, promote Gender and Development values, and conduct information dissemination campaigns and awareness measures on RA 7877 or the Anti-Sexual Harassment Act, and RA 11313 or the Safe Spaces Act;
5. Conduct appropriate briefing to student-trainees in line with the Bachelor of Science in Tourism Management and Hospitality Management program curriculum which is applicable and being practiced at the COMPANY;
6. The UNIVERSITY, through its Industrial Linkage Development Officer or Internship Coordinator, shall endorse student-interns to the COMPANY, and shall be primarily responsible for overseeing, supervising, administering, and managing the welfare of the trainees at the COMPANY. Student-trainees shall address their concerns, issues, and such other matters in relation to the training with the Internship Coordinator;
7. Address and attend to the legitimate requests and concerns of the student-trainees in connection with the training;
8. Ensure their safety and protect them from unwarranted harassment, discrimination, exploitation, or against any other conditions not in keeping with the purpose of the training;
9. Monitor the overall performance of the student-trainees at the COMPANY through frequent/regular visits and courtesy calls;
10. Ensure compliance by the student-trainees of the COMPANY's prevailing policies, procedures, and regulations;
11. Observe the provisions set forth in CHED CMO 104-2017 or the Revised Guidelines for Student Internship Program in the Philippines (SIPP) for all Programs and exercise the duties and responsibilities set forth therein; and
12. Strictly comply with the minimum health standards and the safety protocols issued by the Department of Health, Inter-Agency Task Force, and the Commission on Higher Education.

COMPANY

1. Accommodate **Bachelor of Science in Tourism Management and Hospitality Management** student-interns from Sorsogon State University Sorsogon City Campus to complete the requirements of six hundred (600) hours, for the entire semester with a maximum of eight (8) hours only per workday and six (6) days per week;

2. Design, implement and evaluate the training plan and ensure the acquisition by the student-interns of the necessary abilities, values, and knowledge which are required for the specified program curriculum and in accordance with the training plan;
3. Ensure that student-interns are properly oriented on the content of the job they will be assigned which are related to the purposes of training and program curriculum provided that the same are commensurate with their capabilities and skills;
4. Assign duties, tasks, works, functions, and responsibilities which have a direct connection with the program curriculum;
5. Discuss job contents and program of work to student-interns prior to assignment, designation of duty and actual rendition of work;
6. Ensure that student-interns are protected from physical danger and hazardous activities;
7. Implement and ensure compliance of pertinent laws such as RA 7877 or the Anti-Sexual Harassment Act, RA 11313 or the Safe Spaces Act, as well as the general constitutional provisions on human rights, anti-discrimination, and equality;
8. Require them to report for work for the prescribed number of hours and days and only on regular work shift schedule, provided that, in no case they shall be required to work beyond such period;
9. Allow Internship coordinator/ILDO Officer of the UNIVERSITY to visit the station during reasonable hours of the company operation to monitor the work performance, status, and safety of the student-interns in the COMPANY;
10. Communicate and address concerns about the student-trainee's performance and behavior towards work to the Internship Coordinator;
11. Provide Personal Protective Equipment (PPE) to the student-trainees, if necessary, to the work;
12. Provide a conducive training environment to the student-trainee free from any form of discrimination, exploitation, or harassment;
13. Provide feedback on the work attitude and performance of the student-interns for possible enrichment of the in-school training;
14. Issue an overall assessment, evaluation, remarks, and recommendations over the student-interns' work performance, attitude, and behavior;
15. Evaluate the student-trainee and grade them accordingly at the completion of the Internship Program;
16. Issue a Certificate of Completion to the student-interns upon completion or fulfillment of the units required and compliance of all the training requirements;
17. Observe the provisions of CHED CMO 104-2017 (SIPP) and exercise all the duties and responsibilities set forth therein; and

18. Strictly comply with the minimum health standards and the safety protocols issued by the Department of Health, Inter-Agency Task Force, and the Commission on Higher Education.

B. COMPENSATION

The COMPANY may provide special pay, gratuity, stipend, compensation, or allowance in the form of cash or in kind, to the student-trainee for services rendered by the latter.

C. POSSIBLE EMPLOYMENT AT THE COMPANY

After the completion of the units required for the Internship Program in accordance with the program curriculum and the issuance of a Certificate of Completion to the student-trainee, the COMPANY reserves the right to hire, employ, and absorb the trainee as their regular employee in accordance with their own set of company regulations, provided that, the student-trainee already finished his or her program course at the UNIVERSITY, and provided further, that he/she has graduated from the UNIVERSITY.

D. CONTRACTING RELATIONSHIP

The parties hereby agree that there is no employer-employee relationship between the COMPANY and the student-trainee; the latter is not a regular employee of the COMPANY. However, the COMPANY hereby undertakes to be bound by the provisions of CHED CMO No. 104-2017 or the Revised Guidelines for Student Internship Program in the Philippines (SIPP); and the general laws against discrimination, harassment, and equality as provided in the Philippine Constitution, New Civil Code of the Philippines, and the Revised Penal Code.

As between the UNIVERSITY and the COMPANY, the contracting relationship shall be that of a contractor and its relationship shall be governed by CHED CMO No. 104-2017 and the provisions of the New Civil Code on Obligations and Contracts.

E. CONFIDENTIALITY

The parties hereby anticipate that, under the MOA, it may be necessary for either or both parties to transfer to each other information of confidential nature or that which may be considered as privileged. Each of the parties hereby agrees that it will use the same reasonable efforts to protect the confidentiality of such information and shall not disclose the same, in whole or in part, to unauthorized persons except on a need-to-know basis or when the law requires. The parties assent to be bound by the provisions of RA 10173 or the Data Privacy Act.

F. LIABILITIES

Only those liabilities, injuries, or damages to persons or things committed intentionally by the student-trainee in the performance of his/her duties and functions while under training shall make him/her personally and directly liable and the UNIVERSITY shall be subsidiarily liable under the provisions of the New Civil Code. However, if the COMPANY participated or contributed to such liability, there shall be joint liability between the parties.

In case of mischief, unacceptable behavior, minor offense, or any act which calls for legitimate corrective action from the COMPANY committed by the student-trainee, the COMPANY may issue decision over the behavior and performance of the student-trainee but only after consultation and coordination with the UNIVERSITY through the Internship Coordinator.

G. VIOLATIONS

Any violation of the provisions of this agreement by one of the parties shall give rise to the right of the other party to voluntarily terminate this agreement upon written notice within thirty (30) days from the violation.

H. TERMINATION

The parties hereby agree that this agreement may be terminated voluntarily or automatically. Both the UNIVERSITY and the COMPANY may terminate, voluntarily, this agreement.

For the University

The UNIVERSITY may pull-out any student-interns from the internship and terminate this agreement based on reasonable ground/s after a written notice has been duly served to the COMPANY within 30 days from the commission of the act. The termination and the cessation of the training shall immediately take effect upon the COMPANY's receipt of notice. The reasonable grounds that may terminate the training program of the company are the following:

- Violation of any of the provisions of this agreement and the SIPP;
- Changing any provisions of this signed agreement without the consent of the student-interns and the UNIVERSITY;
- Non – compliance with the prescribed Internship Training Plan;
- Placing student-interns in unsuitable training venues that demeans, degrades, and debases the intrinsic worth and dignity of the child as a human being;
- Withholding evaluation, assessment, or performance report of student-trainees without just cause;
- Violation and commission of crimes under RA 7877 and RA 11313; and
- Such other acts similar or analogous to the foregoing activities classified as harassment, abuse, exploitation, and discrimination under RA 7610 or the Child Abuse Law.

For the Company

The COMPANY reserves the right to discontinue to supervise internship of the student-interns and terminate this agreement based on reasonable ground/s upon written notice duly served to the Internship Coordinator of the UNIVERSITY within 30 days from the commission of the act. This disconnection and termination shall take effect immediately upon receipt of the said notice. The reasonable grounds that may terminate the student-interns are the following;

- Violation of any of the provisions of this agreement and the SIPP;
- Habitual absenteeism from the company;
- Willful disobedience of company rules or insubordination to lawful order of superior;

- Poor physical condition, permanent disability or prolonged illness which incapacitates the student-interns from working;
- Theft or malicious destruction of company property and /or equipment.
- Poor efficiency of performance for a prolonged period despite warning duly given to the student-interns; and
- Engaging in violence or other forms of gross misconduct inside the company premises.

The automatic termination of this agreement shall be governed by the provisions of *I. Duration.*

I. DURATION

This agreement shall take effect immediately upon signing hereof, and shall continue hereafter and be automatically terminated only upon the completion of the student-interns of the required number of units and working hours in accordance with the Internship Program and the issuance of the COMPANY of the Certificate of Completion.

During the effectivity of this agreement, it is understood that both parties shall faithfully comply with their duties and the student-interns shall follow all rules and regulations, policies and procedures particularly those affecting the training activities, duly promulgated by the COMPANY.

IN WITNESS WHEREOF, we have hereunto signed this agreement this ___day of _____ 2025, Sorsogon City, Philippines.

SORSOGON STATE UNIVERSITY

Sorsogon City Campus

By:

Dr. GERALDINE F. DE JESUS
SUC President III

MUNICIPAL GOVERNMENT OF PRIETO DIAZ

Prieto Diaz, Sorsogon

By:

HON. ROMEO D. DOMASIAN
Municipal Mayor

Signed in the presence of:

Prof. MA. CLAIRE M. DICEN

College Dean – Business and Management

LELANIE L. BERJUEGA
Head, ILDO

Human Resource Officer

Supervisor

ACKNOWLEDGMENT

Republic of the Philippines)
Province of Sorsogon) SS.
City of Sorsogon)

BEFORE ME, a Notary Public, this ___day of FEB 1 ²⁰²⁵2025, personally appeared:

<u>NAME</u>	Identification No.	Date/ Place of Issue
Dr. GERALDINE F. DE JESUS Sorsogon State University	710211304	_____
	_____	_____

Known to me and to me known to be the same persons who executed the foregoing instrument and acknowledged to me the same to be their free and voluntary act and deed and that the institutions that they represent.

This instrument consisting of 7 pages including the page on which the acknowledgement is written, has been signed on the left margin of each and every page thereof by the parties

WITNESS MY HAND AND SEAL on the date and place first above written,



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Page No. 21 ;
Book No. III ;
Series of 2025